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NON-DETAINED

UNITED STATES DEPARTMENT OF JUSTICE
EXECUTIVE OFFICE FOR IMMIGRATION REVIEW
BOARD OF IMMIGRATION APPEALS
Falls Church, Virginia

In the Matter of:

A-B-,

File No.: A[REDACTED]

Respondent.

In Removal Proceedings

RESPONDENT'S BRIEF ON APPEAL

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INTRODUCTION

Respondent A-B- ("Ms. A-B-") fled El Salvador following fifteen years of extensive physical, sexual, and emotional violence at the hands of her now former husband, who vowed to kill her. Three years ago, the Board of Immigration Appeals ("Board") found that Ms. A-B- qualified for asylum and remanded solely for completion of background checks. The Immigration Judge ("IJ") disregarded the Board's instructions, waiting more than eight months to schedule a hearing and then certifying the case back to the Board without rendering a new decision. The Board itself took no action on Ms. A-B-'s case for nearly seven months, until the Attorney General ordered it to refer the case to him. The Attorney General then used Ms. A-B-'s case to overturn well-settled law recognizing that women fleeing domestic violence may establish eligibility for protection. In a decision timed to coincide with a speech delivered to immigration judges, the Attorney General vacated the Board's decision granting Ms. A-B- asylum without citing a single piece of evidence. *Matter of A-B-*, 27 I&N Dec. 316 (A.G. 2018).

Although the Attorney General left intact general principles of asylum law that, fairly applied, would lead to only one conclusion—that Ms. A-B- merits protection—the IJ misinterpreted the decision to foreclose Ms. A-B-'s claim. Like the Attorney General, the IJ disregarded the voluminous evidentiary record, committed multiple legal errors in evaluating her claim, and demonstrated actual or at least perceived bias against her. Ms. A-B- comes now before the Board and respectfully requests that the Board again, once and for all, grant her the protection she deserves.

STATEMENT OF FACTS

Ms. A-B- was born in El Salvador in 1971. Exh. R1.B (Translated Resp't Birth Certificate) at 13-14.[1] In 1994 or 1995, Ms. A-B- met her future husband and abuser, B-L-, while living in Town, a town outside of San Salvador. Exh. R1.A (Supp. Decl.) at ¶ 14. She gave birth to the first of their three children in 1996, and the couple formally married in 1998. *Id.* at ¶¶ 16, 19; Exh. R1.B (Translated Children Birth Certificates) at 16-21; Exh. R1.B (Translated Marriage Certificate) at 36-37. For the next fifteen years, Ms. A-B-'s abuser beat her repeatedly, including while she was pregnant and in front of their children, raped her on countless occasions, and frequently threatened to kill her, causing her severe psychological harm. Exh. R1.A (Supp. Decl.) at ¶¶ 19, 21, 23-25, 27, 29, 31-33, 36-37, 42-44; Exh. R1.B (Translated Sworn Witness Statements) at 47-62; Exh. R1.F (Supp. Psychological Evaluation) at 83, 85-86, 93. He also "constantly" controlled and degraded her, calling her a "slut," "dog," or "bitch," and telling her that "a woman's place was in the home like a servant." Exh. R1.A (Supp. Decl.) at ¶¶ 17, 21-22.

Ms. A-B- sought government protection to no avail. She received two protection orders, but the police did nothing to enforce them. *Id.* at ¶¶ 25-28; Exh. R1.B (Translated Protection Orders) at 24-33. Instead, the police placed Ms. A-B- in danger, requiring her to hand deliver the order to her abuser, which he simply crumpled up. Exh. R1.A (Supp. Decl.) at ¶ 26. After Ms. A-B-'s abuser threatened her with a gun, police booked him into jail but released him after a few days with no consequences. *Id.* at ¶ 25. When he attacked her with a large knife, the police told her they could not help her, adding: "If you have any dignity, you will get out of here." *Id.* at ¶ 33. Over the years, Ms. A-B-'s neighbors also called the police several times to help her, but the

[1] Exhibit R1 refers to supplemental documents filed by Ms. A-B- in 2018.

majority of the time, there was no response. *Id.* at ¶ 24. On the rare occasions the police came, they told Ms. A-B- that they needed to see blood or catch her husband in the act, or said her husband could "do what he wants." *Id.*

In an attempt to escape her husband's violence, Ms. A-B- moved with her children to Town, a town about two hours from Town. *Id.* at ¶ 35; Tr. at 46. But her abuser tracked her down and continued to rape and threaten her over the next several years, telling her she "would always be his woman" and he would kill her if he saw her with another man. Exh. R1.A (Supp. Decl.) at ¶ 37. In November 2013, Ms. A-B- divorced her abuser, which only enraged him more. *Id.* at ¶¶ 38-39; Exh. R1.B (Translated Divorce Paperwork) at 38-46. Minutes after the divorce finalized, he threatened: "Just because we're divorced and you think you're free, you're wrong." Exh. R1.A (Supp. Decl.) at ¶ 39. As a condition of the divorce, he also demanded custody of their children to maintain control over her. *Id.* at ¶ 38.

A month after the divorce, Ms. A-B- encountered her abuser and his brother E-, a police officer, who said that she would always remain in her ex-husband's grip and threatened her life. *Id.* at ¶ 40; Tr. at 41-42. She received many threats following this incident by phone and through her children. Exh. R1.A (Supp. Decl.) at ¶ 43; Tr. at 45. When she reported the threats, the police merely told her to "change the 'chip'" in her phone. *Id.*; Tr. at 45. In June 2014, her abuser physically assaulted her, grabbing her hair and pushing her, and again threatened to kill her. Exh. R1.A (Supp. Decl.) at ¶ 44; Tr. at 44, 47. Fearing he would make good on his threats, Ms. A-B- fled El Salvador about a week later. *Id.* Ms. A-B- believes her life would be in danger in El Salvador, and continues to suffer from severe psychological distress owing to the violence. *Id.* at ¶¶ 2, 50-51; Exh. R1.F (Supp. Psychological Evaluation) at 83, 85-86, 93.

PROCEDURAL HISTORY

Ms. A-B- applied for asylum, withholding of removal ("withholding"), and protection under the Convention Against Torture ("CAT"). Exh. 2.B (Form I-589). On December 1, 2015, the IJ issued a written decision denying Ms. A-B-'s applications. I.J. (2015) at 16.[1] Ms. A-B- appealed and, on December 8, 2016, a three-member panel of the Board unanimously reversed and found she "met her burden of proving her eligibility for asylum." BIA at 4. The Board remanded the record solely for the completion of background checks pursuant to 8 C.F.R. § 1003.1(d)(6) and for the entry of an order pursuant to 8 C.F.R. § 1003.47(h). BIA at 4.

Following remand, the IJ did not schedule a hearing to confirm whether the background checks had been completed. After six months elapsed with no action taken on her case, Ms. A-B- asked the IJ to schedule a master calendar hearing for the Department of Homeland Security ("DHS") to update the background checks. Resp't Mot. to Calendar for a Master Hearing (filed May 12, 2017). The IJ took nearly one month to adjudicate the motion and then scheduled her case for an individual hearing more than two months later. Hearing Notice (dated June 5, 2017).

At the outset of the hearing, DHS confirmed that the background checks were clear. Tr. 2 at 2.[2] The IJ then asked the DHS attorney whether she "intend[ed] to make the same concessions in this case that [DHS] made on appeal in the case of *Matter of A-R-C-G-*, [26 I&N Dec. 388 (BIA 2014)]," a case in which DHS conceded that "married women in Guatemala who are unable to leave their relationship" was a cognizable particular social group. *Id.* The DHS attorney replied that she would not so concede in light of *Velasquez v. Sessions*, 866 F.3d 188

[1] "I.J." refers to the IJ's October 10, 2018 decision, except where specified.

[2] "Tr. 2" refers to the official transcript of the August 18, 2017 hearing.

(4th Cir. 2017), an unrelated case decided the previous month. *Id.*[3] Without engaging in any further discussion of the facts or relevance of *Velasquez*, and without granting or denying Ms. A-B-'s application, the IJ announced that he was re-certifying the case to the Board for further consideration. *Id.* at 4. After a brief recess, the IJ provided the parties with a written order in which he "observe[d]" that *A-R-C-G-* "may not be legally valid" in light of the Fourth Circuit's recent decision in *Velasquez*. I.J. Certification Order (Aug. 18, 2017) ("I.J. Cert.") at 4. The IJ "certified and administratively returned" Ms. A-B-'s case to the Board for it to reconsider whether she was eligible for asylum. *Id.* The same day he issued the certification order, the IJ sent an e-mail to EOIR Director James McHenry with the subject line "Re: A-R-C-G," attaching both the certification order and underlying record. Resp't Mot. to Recuse (filed Aug. 30, 2018) ("Resp't Mot.") Tab G (E-Mail from IJ Couch to McHenry).

Despite the IJ's attempt to return Ms. A-B-'s case, the Board did not issue a filing receipt, notice of certification, or any other document evidencing that it had accepted jurisdiction over the case. Then, on March 7, 2018, the Attorney General directed the Board to refer her case to him pursuant to 8 C.F.R. § 1003.1(h)(1)(i). *Matter of A-B-*, 27 I&N Dec. 227, 227 (A.G. 2018). He invited the parties and interested amici to address "[w]hether, and under what circumstances, being a victim of private criminal activity constitutes a cognizable 'particular social group' for purposes of an application for asylum or withholding of removal." *Id.*

[3] The applicant in *Velasquez* fled El Salvador after being threatened by the mother of her late husband, who wanted the applicant to relinquish custody over her minor child. 866 F.3d at 191-92. The applicant claimed that she was persecuted on account of her membership in a particular social group consisting of her nuclear family, but the Fourth Circuit rejected the claim, holding that substantial evidence supported the agency conclusion that her family membership was not a central reason for the persecution. *Id.* at 194-96. The Court also rejected the applicant's reliance on *A-R-C-G-*, noting that the validity of the social group in that case "is not at issue" and "does not bear on our nexus analysis." *Id.* at 195 n.5.

On March 16, 2018, DHS filed a motion requesting that the Attorney General, *inter alia*, suspend the briefing schedule to allow the Board to rule on the IJ's certification order and to clarify the question presented and specify any precedential Board decision whose validity he intended to consider. DHS Mot. on Certification (filed Mar. 16, 2018). On March 21, 2018, Ms. A-B- submitted a reply expressing non-opposition and specifically requesting that the Attorney General advise the parties if he was considering overruling *A-R-C-G-*. Resp't Resp. to DHS Mot. on Certification (filed Mar. 21, 2018).

On March 30, 2018, the Attorney General issued an order denying DHS's requests. *Matter of A-B-*, 27 I&N Dec. 247 (A.G. 2018). The Attorney General stated that there was no need to allow the Board to address the order because the case was "not properly pending before the Board." *Id.* at 248. The Attorney General stated that in light of the limited scope of the remand and DHS's confirmation that the background checks were clear, the IJ was obliged to issue an order granting or denying Ms. A-B-'s asylum application. *Id.* (citing 8 C.F.R. § 1003.47(h)). The Attorney General noted that the regulations only permit immigration judges to certify a case after a "decision" has been made and found that the IJ had failed to issue a "decision" that could be certified to the Board. *Id.* The Attorney General stated that because the IJ failed to issue a "decision" on remand, his attempt to certify the case back to the Board was "procedurally defective." *Id.* at 248-49.

The Attorney General next denied the parties' request to clarify the primary briefing question. *Id.* at 249-50. He stated that "several Federal Article III courts have recently questioned whether victims of private violence may qualify for asylum under [INA § 208(b)(1)(B)(i)] based on their claim that they were persecuted because of their membership in a particular social

group," and that the briefs should address the question as presented. *Id.* at 249. He did not list any precedential Board decisions that he wished to revisit.

On June 11, 2018, the Attorney General issued a decision overruling *A-R-C-G-*, even though both parties and eleven out of twelve amici urged him not to do so. *Matter of A-B-*, 27 I&N Dec. 316, 317, 346 (A.G. 2018). "Having overruled *A-R-C-G-*," the Attorney General reversed this Board's determination that Ms. A-B- qualified for asylum and remanded to the IJ for further proceedings. *Id.* at 340, 346. The Attorney General timed the issuance of his decision to coincide with a speech delivered to a group of immigration judges in which he stated that "the vast majority of the current asylum claims are not valid" and that his forthcoming decision in Ms. A-B-'s case would "restore[] sound principles of asylum." U.S. Dep't of Justice, Attorney General Sessions Delivers Remarks to the Executive Office for Immigration Review Legal Training Program (June 11, 2018).[4]

On remand, the IJ ordered the parties to file briefs "relevant to the disposition of this case in light of *Matter of A-B-*," but noting—before hearing from the parties—that Ms. A-B- purportedly waived her claim for CAT protection during her prior appeal to the Board. I.J. Scheduling Order (July 9, 2018). Ms. A-B- filed a legal brief and supplemental evidence, including evidence previously submitted to the Attorney General. See Resp't I.J. Eligibility Br. She also filed a motion to recuse the IJ, discussed in further detail *infra* Section II. On October 10, 2018, without holding an evidentiary hearing, the IJ denied Ms. A-B-'s recusal motion as well as her applications for asylum, withholding, and CAT relief. I.J. at 1, 19. Ms. A-B- again appealed to the Board.

[4] Available at https://www.justice.gov/opa/speech/attorney-general-sessions-delivers-remarks-executive-office-immigration-review-legal.

STATEMENT OF THE ISSUES

1. Whether the IJ erred in finding that Ms. A-B-'s proposed social groups are not cognizable under the INA and that Ms. A-B- is not a member of any of the proposed groups.
2. Whether the IJ erred in finding that neither Ms. A-B-'s social group membership nor her political opinion is at least "one central reason" for her persecution.
3. Whether the IJ erred in finding that Ms. A-B- did not demonstrate the Salvadoran government's inability or unwillingness to protect her.
4. Whether the IJ erred in finding that Ms. A-B- is not eligible for withholding.
5. Whether the IJ erred in finding that Ms. A-B- waived her claim for CAT protection or that, in the alternative, she is not eligible for such relief.
6. Whether the IJ's conduct rendered Ms. A-B-'s hearing fundamentally unfair and prejudiced her claim such that he violated her due process rights, requiring reversal.
7. Whether the IJ's conduct fell below the standards required of immigration judges, such that Ms. A-B- is entitled to review of her claims by a different immigration judge.

STANDARD OF REVIEW

The Board reviews an immigration judge's findings of fact under a clearly erroneous standard. *See* 8 C.F.R. § 1003.1(d)(3)(i). The Board reviews questions of law, discretion, and judgment under a de novo standard. *See* 8 C.F.R. § 1003.1(d)(3)(ii).

SUMMARY OF ARGUMENT

The IJ distorted the Attorney General's decision in *A-B-* to categorically foreclose asylum to Ms. A-B-. In so doing, he contravened a bedrock principle of asylum law that claims are to be assessed on a case-by-case basis, disregarding extensive documentary evidence establishing Ms. A-B-'s eligibility for asylum and the other humanitarian protections she seeks, including her credible testimony, statements of multiple expert witnesses, and voluminous country conditions documentation. He further made several legal errors with respect to each step in the analysis that independently require reversal. Had the IJ applied the correct legal standards and engaged in a record-specific inquiry, he would have been compelled to find that Ms. A-B- belongs to a particular social group defined primarily by her gender, that her abuser brutalized her precisely because of her gender, and that the government of El Salvador has demonstrated its inability and unwillingness to protect her. Moreover, throughout these proceedings, Ms. A-B- has been denied due process and her right to a fair hearing and opportunity to present her claims. The Board should reverse and again grant Ms. A-B- asylum or, at a minimum, remand to a new immigration judge for a fair, individualized adjudication.

REQUEST FOR PANEL DECISION AND ORAL ARGUMENT

Ms. A-B- respectfully requests three-member review of her case. 8 C.F.R. § 1003.1(e)(6). This case raises questions of national import, potentially impacting all asylum seekers raising claims similar to those raised by Ms. A-B-. 8 C.F.R. § 1003.1(e)(6)(iv). Immigration judges have interpreted *A-B-* inconsistently and will continue to do so without clear guidance from the Board.

8 C.F.R. § 1003.1(e)(6)(i). Panel review would also be appropriate because Ms. A-B-'s case presents complex issues of fact and law, which recur in many cases involving gender-based violence. 8 C.F.R. § 1003.1(e)(6)(vii). Additionally, the IJ's decision is not in conformity with the law or applicable precedents, both due to its distorted interpretation of the Attorney General's *A-B-* decision, and for other legal and factual errors as discussed below, requiring reversal. 8 C.F.R. § 1003.1(e)(6)(iii), (v)-(vi). Finally, as stated in her Notice of Appeal, Ms. A-B- also requests to be heard in oral argument on the merits of this appeal. 8 C.F.R. § 1003.1(e)(7).

[Omitted from this transcription: the filed brief's Argument (Sections I and II, filed pages 10-47). The transcription resumes at the Conclusion.]

CONCLUSION

For the foregoing reasons, the Board should reverse the IJ and uphold its previous finding that Ms. A-B- qualifies for asylum because she was subject to past persecution in the form of domestic violence on account of protected grounds from which she cannot expect protection of the Salvadoran government. The Board should also reverse the IJ and rule that Ms. A-B- is entitled to withholding and CAT protection. Alternatively, the Board should remand to a neutral adjudicator with instructions to apply the proper legal standards and fairly consider the evidence presented.

Dated: December 16, 2019

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on [DATE OF SERVICE], I served a copy of the foregoing Respondent's Brief on Appeal, by first-class mail, on [DHS OFFICE], at [SERVICE ADDRESS].

_____
[PERSON SERVING]
[FIRM NAME], Counsel for Respondent